



U.S. Department
of Transportation

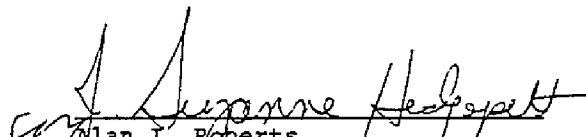
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8063 (EXTENSION)
FIFTH REVISION January 18, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8063 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 20 1992
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Taylor-Wharton Division of Harsco Corporation
Theodore, AL

September 21, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 18 1991

DOT-E 8063
(FIFTH REVISION)

1. Taylor-Wharton Division of Harsco Corporation, Theodore, AL, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the nonflammable gases described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of a DOT Specification 4L cylinder, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Taylor-Wharton's application dated July 20, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Carbon dioxide, refrigerated liquid and Nitrous oxide, refrigerated liquid, classed as nonflammable gases.

4. PROPER SHIPPING NAME (49 CFR 172.101). Carbon dioxide, refrigerated liquid or Nitrous oxide, refrigerated liquid, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.304(a).

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a vacuum insulated DOT Specification 4L welded cylinder having a service pressure of 292 psi, models as follows:

<u>Model</u>	<u>Drawings</u>
C D-170 (carbon steel outer container and stainless steel inner container)	1706-0C00, Rev P, 1-5-79 1706-6C07, Rev A, 5-8-84 1706-3C06, Rev B, 5-8-84
CD-170 (Stainless steel outer containers and stainless steel inner container)	1706-0C08, Rev E, 5-12-82 1706-6C06, Rev 1, 5-8-84 1706-3C06, Rev B, 5-8-84
CD-170 with same basic inner container with a special support system	1706-0C10, Rev C, 5-14-85 1706-6C09, Rev E, 5-14-85 1706-3C08, Rev E, 5-14-82

JAN 18 1991

XL-400 with special support system	1706-0C26, 4-30-86 1706-6C26, Rev A, 4-30-86 1706-3C26, Rev A, 4-30-86
XL-400 without support system	1706-0C40, Rev C, 6-4-86 1706-6C40, Rev A, 6-4-86 1706-3C40, Rev B, 6-4-86
XL-45 HP	1705-0C08, Rev T, 12-28-90 1706-6C40, Rev F, 3-9-90 1706-3C40, Rev G, 9-26-90
XL-50 HP	HP50-0C00, Rev R, 2-24-89 HP50-6C00, Rev E, 2-11-89 HP50-3C00, Rev E, 2-16-89

a. The maximum allowable filling density must be as follows:

<u>Safety Relief Valve</u>	<u>Per Cent Filling Density</u>	
<u>Setting psig</u>	<u>CO2</u>	<u>N2O</u>
350	97.3	94.2

b. Each cylinder must be protected with at least one safety relief valve and at least one frangible disc complying with 49 CFR 173.34(d) and 173.304(b)(2). The relieving capacity of the safety devices must be in accordance with CGA Pamphlet S1.1 on a bare tank basis, or with the insulation space saturated with gaseous lading at atmospheric pressure.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

JAN 18 1991

c. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

d. Each cylinder must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 8063."

e. The temperature of the cargo at time of loading must not exceed 0°F. (291 psig) for carbon dioxide and +4°F (291 psig) for nitrous oxide. Maximum travel time is not to exceed 120 hours.

f. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

g. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. November 30, 1992.

Issued at Washington, D.C.

JAN 18 1991

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA.